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**JUDGMENT SHEET
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT**

Crl. Appeal No. 25629 of 2021
(Muhammad Younas *versus* The State, etc.)

Crl. Rev. No. 29272 of 2021
(Roshnai Bibi *versus* The State, etc.)

JUDGMENT

Date of hearing: 11.05.2026.

Appellant by: M/s Arshad Ali Mahar and Chaudhary Nazir Hussain, Advocates.

State by: Ms. Maida Sobia, Deputy Prosecutor General, along with Ashfaq, S.I.

Complainant by: In person.

Aalia Neelum, C.J:- Muhammad Younas son of Charagh, Caste Waghra, resident of Sultan Nagar, Tehsil Depalpur District Okara, the appellant, was involved in case F.I.R. No.468 of 2014, dated 02.08.2014, registered under Sections 302, 34 PPC, at Police Station, Basirpur, and was tried by the learned Additional Sessions Judge, Depalpur. The trial court seized with the matter in terms of the judgment dated 31.03.2021 and convicted the appellant under section 302(b) PPC and sentenced him to undergo **imprisonment for life** with the direction to pay Rs.4,00,000/- as compensation under section 544-A Cr.P.C. to the legal heirs of the deceased, Muhammad Siddique, and in case of default in payment thereof, he would further undergo six months of S.I. The benefit of section 382-B Cr.P.C. was also extended in favour of the appellant.

2. Feeling aggrieved by the trial court's judgment, Muhammad Younas, the appellant, has assailed his conviction by filing Crl. Appeal No. 25629 of 2021.

It is pertinent to note that the complainant also filed Crl. Rev. No. 29272 of 2021 seeking enhancement of the sentence awarded to the appellant. The matters arising from the same trial court judgment are being disposed of in a consolidated judgment.

3. According to the prosecution's version as set out in the crime report (Ex.PD) by Roshnai Bibi (PW-1), the complainant, that her husband, Haji Muhammad Siddique, had four Kanals of agricultural land in Sultan Nagar. On August 1, 2014, in the afternoon (Dopeher-wela), she and her husband were there in connection with the cultivation of the land when Muhammad Younis, the appellant, suddenly came and challenged Chirag (since dead) to let Haji Muhammad Siddique taste the pleasure of cultivating the land and to kill him. On this, Muhammad Younis, the appellant, inflicted “dang” blows on the different parts of the body of Haji Muhammad Siddique. Chirag (since dead) hit Haji Muhammad Siddique on the right palm with a kassi. Roshnai Bibi (PW-1), the complainant, fell on her husband, and then Chirag (since dead) hit her on the right hand with a kassi. Then Muhammad Younis, the appellant, hit Roshnai Bibi (PW-1), the complainant, several times with a “dang”, hitting different parts of her body. Upon hearing the noise and commotion, Muhammad Waris (given up being unnecessary) and Muhammad Aslam (PW-2), along with other villagers, arrived at the spot, witnessed the incident, and intervened to free her from the accused. The accused fled the crime scene with offensive weapons. Haji Muhammad Siddique was brought to the hospital in Basirpur in a severely injured condition. He succumbed to his injuries at the hospital at 11 pm.

The motive for the incident was that Muhammad Siddique owned four kanals of land in the village, which the accused sought to seize by force. Due to this grudge, after consulting with each other, the accused attacked and killed Muhammad Siddique and assaulted the complainant.

4. After the incident, Roshnai Bibi (PW-1), the complainant, went to the police station on 02.08.2014 at 12.15 a.m. to report the incident. On the written application (Ex.PA) of Roshnai Bibi, the complainant (PW-1), for registration of

F.I.R., after completion of police karwai, a formal F.I.R. (Exh. PD) was chalked out by Ghulam Sabir, A.S.I (PW-4).

5. Muhammad Iqbal, S.I (PW-9), investigated the case, found the appellant guilty, prepared a challan under Section 173 of the Cr.P.C., and sent it to the court of competent jurisdiction. On 17.05.2016, the trial court formally charged the appellant, to which he pleaded not guilty and claimed trial. In support of its version, the prosecution produced nine (09) witnesses.

6. After the closure of prosecution evidence, the appellant was examined under Section 342 of Cr.P.C., wherein neither did he opt to appear as his own witness in terms of Section 340 (2) Cr.P.C., nor did he produce defence evidence. In response to a particular question of why this case was against him and why the PWs had deposed against him, the appellant made the following depositions: -

“The PWs are closely related inter-se. The PWs are inimical to me and my co-accused Charagh (my father since dead). The PWs have deposed falsely by suppressing the real facts. The real facts are that on the day and time of occurrence I was present in my land and Muhammad Rafique complainant of cross version had also reached there. There was a dispute of land. After some time, Muhammad Siddique (deceased) along with Ramzan, Muhammad Akram his son, Umar his grandson along with two unknown persons armed with Sota and “Kassi” came there while raising lalkara. Muhammad Siddique (deceased) raised lalkara that I be taught a lesson for the demand of land and for quarrel with him. Akram accused of cross version caused Sota blow at me which hit on the right side of my head. I tried to resist upon which Siddique and Akram caught hold me. On lalkara of Muhammad Akram, Umar accused caused Sota blow on my left side of head, again Umar accused of cross version injured me. Ramzan accused caused Sota blow which landed on my left arm which was fractured, second blow of Ramzan accused of cross version hit on my right arm. I after receiving injuries fell on the ground. Muhammad Siddique (deceased) also received injuries at the hands of his own companions. I received injuries firstly and was not in a position to cause injury to Siddique. Siddique

deceased and I myself were medically examined. Complainant concocted a false story and dishonestly by suppressing my injuries involved me in this case. Complainant with her co-accused mentioned in cross version was aggressors. I am innocent.”

7. After recording evidence and evaluating the evidence available on record in the light of the arguments advanced by both sides, the trial court found the prosecution version proved beyond any shadow of reasonable doubt, which resulted in the appellant’s conviction in the afore-stated terms.

8. I have heard the arguments advanced by the learned counsel for the parties and have minutely perused the record on the file.

9. In the present case, the occurrence took place on 01.08.2014 in the afternoon (دوپہر Dopeher-wela). The matter was reported at the police station by Roshnai Bibi (PW-1), the complainant, to Ghulam Sabir, ASI (PW-4), at 12:15 a.m. on 02.08.2014 through a written application (Ex.PA), and FIR (Ex.PD) was registered at the same time and date. The distance between the police station, Basirpur, District Okara, and the place of occurrence is 3 kilometers. According to the prosecution's version in the FIR (Ex.PD), Haji Muhammad Siddique was brought to the hospital in Basirpur in a severely injured condition. He succumbed to his injuries at the hospital at 11 p.m. on 01.08.2014. The incident was reported by Roshnai Bibi (PW-1), the complainant, at the police station after the demise of Haji Muhammad Siddique, which occurred in the hospital at Basirpur at 11 p.m. Roshnai Bibi (PW-1), the complainant, deposed during examination-in-chief that:

“PWs took me and my husband to the hospital, Haji Muhammad Siddique was taken to RHC Basir Pur where he was medically examined by the doctor and was admitted in the hospital. I was taken to THQ Hospital, Depalpur where doctor medically examined me.”

Muhammad Aslam (PW-2), son of Roshnai Bibi (PW-1), the complainant, and Haji Muhammad Siddique, deceased, deposed during examination-in-chief that:

“I and Waris PW took Haji Muhammad Saddique to RHC Basir Pur where he was medically examined

and after Isha prayer Haji Muhammad Siddique succumbed to the injuries on the same day.”

Muhammad Aslam (PW-2) stated that he, along with Muhammad Waris, took Haji Muhammad Siddique to RHC Basirpur, where he was medically examined. Contrary to the deposition of Roshnai Bibi (PW-1), the complainant and Muhammad Aslam (PW-2), Muhammad Abbas 1753/C (PW-6) deposed during examination-in-chief as under:

“Stated that on 01.08.2014 I was posted at Police Station Basirpur. On the same day I produced injured Muhammad Younas before Medical Officer at RHC, Basirpur alongwith Police papers and on the same day I also produced Muhammad Siddique injured alongwith Police papers before Medical Officer at RHC Basirpur for medical examination. I also got medically examined Mst. Roshnai Bibi from THQ Hospital, Depalpur on the same day i.e. 01.08.2014 at about 6:15 p.m. I produced injured alongwith Police papers before WMO, THQ hospital, Depalpur.”

During cross-examination, Muhammad Abbas 1753/C (PW-6) deposed that:

“On 01.08.2014 at about 4:00 p.m. Muhammad Siddique injured was got medically examined by me and Mst. Roshnai Bibi was got medically examined by me from the doctor at 6:00 p.m. from Depalpur. I do not remember as to whether the medical examination of Siddique, Roshnai and Younas injured (accused) was got conducted at different times. After the medical examination Siddique, Roshnai Bibi injured and Younas injured (accused) were left over by me and that I alongwith the MLRs went to the Police Station.”

Doctor Muhammad Zahid (PW-5) deposed during examination-in-chief as follows:-

“Stated that on 01.08.2014 I was posted at RHC Basirpur, Tehsil Depalpur. On the same day, I examined Muhammad Siddique s/o Nizam, aged about 65 years, r/o Sultan Nagar, Police Station Basirpur. The injured was received at about 4:30 p.m. on 01.08.2014. The injured was brought by Abbas 1753/C.”

During cross-examination, Doctor Muhammad Zahid (PW-5) deposed that:

“The injured was accompanying Abbas 1753/C when he came to the hospital for his medical examination.”

Doctor Yasmin Manzoor (PW-10) deposed during examination-in-chief as under:

“Stated that on 01.08.2014 I was posted at THQ hospital, Depalpur. On the same day, I medically examined Mst. Roshnai Bibi w/o Muhammad Siddique, aged about 80 years, r/o Sultan Nagar, Basirpur. The injured was received at about 6:15 p.m. on 01.08.2014. The injured was brought by Muhammad Abbas 1753/C.”

During the prosecution's testimony, Roshnai Bibi (PW-1), the complainant, and Muhammad Aslam (PW-2) denied the defence's suggestions that Haji Muhammad Siddique, the deceased, and Roshnai Bibi (PW-1), the complainant, were shifted by the police to the hospital for medical examination. Roshnai Bibi (PW-1), the complainant, deposed during cross-examination as under:

“It is incorrect that Muhammad Siddique deceased while in injured condition was shifted to Hospital by the police. Volunteered that we ourselves shifted the injured to the hospital.----- It is incorrect that we did not shift Siddique in injured condition in the Hospital. Siddique deceased while in injured condition was not in senses. It is incorrect that Siddique was in senses when he was in the hospital and that he himself stated the history of injury to the doctor.”

Similarly, Muhammad Aslam (PW-2) deposed during cross-examination that:

“Muhammad Siddique deceased was not medically examined through police.”

While the documentary evidence shows that Haji Muhammad Siddique, deceased, and Roshani Bibi (PW-1) were taken to the hospital by Muhammad Abbas, 1753/Constable (PW-6), where they underwent medical examinations through injury statements issued by Nasir Ali 1068/HC (PW-8) in Raps No. 14 dated

01.08.2014 (Ex.PE/1 and Ex.PG). Nasir Ali 1068/HC (PW-8) deposed during examination-in-chief as follows:-

“Stated that on 01.08.2014 I was posted at Police Station Basirpur as Moharrir. On the same day the then injured Muhammad Siddique appeared at Police Station. I inspected the injured and prepared injury statement of Muhammad Siddique the then injured Exh.PE/1 and entrusted the injured alongwith injury statement to Muhammad Abbas 1753/C. On the same day injured Roshnai Bibi appeared before me and I prepared injury statement Exh.PG and entrusted the injured alongwith injury statement to Muhammad Abbas 1753/C for conducting medical examination.”

The testimony of Nasir Ali, 1068/HC (PW-8), reveals that the prosecution witnesses, including the injured witness, deliberately concealed the truth and genuineness of the incident. Humans may lie, but documents would not lie. It is often said that documents speak louder than words. In this regard, case of **“SHER MUHAMMAD and others versus MUHAMMAD KHALID and others”** (2004 SCMR 826) can be advantageously referred and relevant portion from its paragraph No.5 is hereby reproduced as under: -

*“Both the Courts were one in holding, and rightly so, that **oral evidence which was contrary to the documentary evidence could not be given preference over the said documentary evidence.**”*

(emphasis added)

Roshnai Bibi (PW-1), the complainant, deposed during cross-examination as under:

“The police station Basirpur is at a distance of one kilometer from the RHC Basirpur. I submitted application Exh.PA after the death of Muhammad Siddique deceased. Before the death of Muhammad Siddique and after the MLC of Muhammad Siddique in between that time I have not informed about the occurrence at the police station.”

Contrary to the deposition of Roshnai Bibi (PW-1), the complainant, Muhammad Aslam (PW-2), deposed during cross-examination that:

“I did not inform the police after the medical examination about the occurrence, however, my mother Roshnai PW had informed about the occurrence at the P.S Basirpur after the medical report of Muhammad Siddique (deceased) while he was injured.”

There was an inordinate delay of twelve hours and fifteen minutes in lodging the FIR, and, in this way, the possibility of deliberations and consultations cannot be ruled out. The above-stated facts also contradict the prosecution's story and strengthen the defense version that Roshnai Bibi (PW-1), the complainant, got registered a case against them with false accusations and concealed the genuine facts. Roshnai Bibi (PW-1), the complainant, deposed during cross-examination that:

“Muhammad Younis did not receive injuries during the occurrence. It is incorrect that Muhammad Younis accused was medically examined through police i.e Muhammad Abbas 1753/C and that Muhammad Siddique was also got medically examined by Muhammad Abbas 1753/C at the same time.----- It is incorrect that Muhammad Younis accused was injured in the fight at the same time when Muhammad Siddique deceased received injuries. It is incorrect that at the time of fight there was no injury on the head of Muhammad Siddique.”

Muhammad Aslam (PW-2) deposed during cross-examination that:

“It is incorrect that Muhammad Younis accused was medically examined through police. ----- It is incorrect that I have dishonestly suppressed the injuries of Muhammad Younis accused which he received during the occurrence. It is incorrect that at the time of medical examination Muhammad Siddique himself mentioned the history of fight to the doctor.”

Contrary to the deposition of Roshnai Bibi (PW-1), the complainant, and Muhammad Aslam (PW-2), Muhammad Abbas, 1753/Constable (PW-6), deposed that he produced the injured Muhammad Younas before the medical officer at RHC. Nasir Ali 1068/Constable (PW-8) deposed during cross-examination that:

“It is correct that on the same day I prepared the injury statement of Younas accused and Younas injured was sent to hospital with Muhammad Abbas 1753/C for the medical examination.”

Muhammad Iqbal SI (PW-9), investigating officer, deposed during cross-examination that:

“Muhammad Younas accused was got medically examined by Muhammad Abbas 1753/C on 01.08.2014 from the RHC, Basirpur. There were four injuries mentioned in the MLC of Muhammad Younas, injury No.1 was on his head and the bone was exposed, second injury was also on the head and third injury was on arm which was found fractured through X-ray. ----- It was found in the investigation by me that Muhammad Younas accused was injured in the same occurrence in which Muhammad Siddique and Roshnai were injured. I cannot say as to whether Roshnai or Siddique the then injured approached the Police Station after getting the MLRs for the registration of case. Volunteered that the complainant made application Exh.PA for registration of case at 12:05 a.m. (night). I prepared the unscaled site plan Exh.PH on pointing out the complainant and PWs. I did not omit anything mentioned by the PWs and complainant. I did not add anything in the unscaled site plan on my part. The complainant and the PWs did not mention while preparing Exh.PH that Younas caused dang blow on the person of Muhammad Siddique which landed on his head. Volunteered that it was told to me that accused Younas armed with dang injured Muhammad Siddique. The complainant and PWs did not mention about the injuries of Muhammad Younas received by him during the occurrence. It is correct that in scaled site plan Exh.PJ the complainant and the PWs also did not mention the injury caused by Younas on the head of Muhammad Siddique and that the injuries of Muhammad Younas received in this occurrence were also not mentioned.”

Muhammad Iqbal SI (PW-9), investigating officer, also deposed during cross-examination that:

“The occurrence took place on 01.08.2014 and that the statements of the PWs were recorded by me on 02.08.2014 after registration of the FIR which was registered at 12:15 a.m. (midnight).”

Muhammad Iqbal, SI (PW-9), the investigating officer, deposed that Roshnai Bibi (PW-1), the complainant, submitted a written application (Ex.PA) at the Police Station at 12:05 a.m on 02.08.2014, which led to the registration of the FIR at 12:15 a.m. on 02.08.2014. According to Muhammad Iqbal, SI (PW-9), after the FIR (Ex. PD) was registered, he received the police file of the case through Bashir Ahmed 285/C. He then went to the RHC along with Muhammad Abbas, 1753/Constable (PW-6), where the dead body of Muhammad Siddique was present. He inspected it, prepared an injury statement (Ex.PF/3), and the inquest report (Ex.PF/4) regarding the dead body of Muhammad Siddique. On the face of the inquest report (Ex.PF/4), the FIR number, police station, and date of registration were mentioned. The date of registration of the FIR is mentioned as “02.08.2014.” In column No.3 of the inquest report (Ex.PF/4), the time of receiving information of death is 11:00 p.m. on 01.08.2014. In column No.4 of the inquest report (Ex.PF/4), the names of the eyewitnesses, i.e., Muhammad Waris (given up as unnecessary) and Muhammad Aslam (PW-2), are not mentioned, casting a cloud of doubt on their presence. In column No. 24 of the inquest report (Ex.PF/4), the dead body is shown lying on the grassy plot in front of the RHC Building, and this fact is also written in the column of the “brief facts of the case.” Muhammad Iqbal, SI (PW-9), the investigating officer, did not mention in the column of brief circumstances of the case of the Inquest Report (Ex.PF/4) that when he handed over the dead body of Muhammad Siddique to Muhammad Abbas 1753/Constable to escort it to THQ Depalpur for postmortem examination, he had prepared and handed over various documents along with it. Dr. Adal Rasheed (PW-7), who conducted the postmortem examination upon the dead body of Muhammad Siddique, deposed during examination-in-chief that:

“The date and time of death was on 01.08.2014 at about 11:00 p.m. On 02.08.2014 at about 4:00 a.m. the dead body was brought in dead house. The documents were received from the Police on 02.08.2014 at about

11:30 a.m. The autopsy was conducted on 02.08.2014 at about 12:05 p.m.”

Dr. Adal Rasheed (PW-7), also deposed during cross-examination that:

“According to post mortem report the time of death of Haji Muhammad Siddique deceased was 11:00 p.m. on 01.08.2014. The dead body was received in the hospital at 4:00 a.m. on 02.08.2014. The Police papers were received by me on 02.08.2014 at about 11:30 a.m. and that the post mortem was conducted by me on the dead body of Muhammad Siddique on 02.08.2014 at 12:05 p.m.----- When the dead body was brought in the dead house by the police at that time the relevant police papers for conducting the postmortem examination were not produced.”

In a criminal case, it was the prosecution's burden to prove the accused's involvement beyond a reasonable doubt. Considering the above-mentioned facts, I have no hesitation in concluding that the prosecution concealed the genuine facts. Doctor Muhammad Zahid (PW-5) admitted during cross-examination that:

"Muhammad Siddique the then injured was taken to the Hospital by the Police and that Muhammad Siddique was stable at that time. Muhammad Siddique injured himself narrated the history of injuries that the injuries were inflicted during fight at 2:00 p.m. I minutely checked up the whole body of the then injured Muhammad Siddique. During my examination whatever was observed by me in the shape of injuries I mentioned in the MLC Exh.PE without addition or omission."

An injury on the left side of the deceased Muhammad Siddique's head was visible, whereas Doctor Muhammad Zahid (PW-5) had not noticed the injury. Dr. Adal Rasheed (PW-7), also deposed during cross-examination that:

“Injury No.1 on the person of Muhammad Siddique was visible.----- Injury No.1 could be caused or could be the result of fall on the ground on hard surface.”

With medical evidence, this court also considered the sequence of the overt acts and the location of the injuries in relation to the accused and found that

the prosecution witnesses improved their evidence. There are contradictions/improvements in the testimonies of Roshnai Bibi (PW-1), the complainant, and Muhammad Aslam (PW-2), regarding the major aspect of the case. The defence brought on the record contradictions/improvements in the testimony of Roshnai Bibi (PW-1), the complainant, and Muhammad Aslam (PW-2). Roshnai Bibi (PW-1), the complainant, deposed during cross-examination that:

“I had stated in my application Exh.PA that Charagh accused raised lalkara to Younis to caught hold me and Haji Muhammad Siddique and killed us. Confronted with Exh.PA where name of Roshani is not mentioned. I got record in Exh.PA that Younis accused inflicted dang blow to Haji Muhammad Siddique on his head on left side. Confronted with Exh.PA where it is not so recorded in this sequence. I had stated in my application Exh.PA that Younis accused repeated second dang blow which hit Haji Muhammad Siddique on his right arm. Confronted with Exh.PA where it is not so recorded. I did not state in Exh.PA that Muhammad Younis caused dang blows on the person of Haji Siddique which landed on the different parts of his body. Confronted with Exh.PA where it is so recorded.-----I stated in Exh.PA that Younis inflicted dang blow which hit on back of my head. I also stated that Younis accused again inflicted dang blow which hit on my left knee and left buttock. I also stated that I fell on the ground and that Haji Siddique also fell on the ground after sustaining injuries. Confronted with Exh.PA where it is not so recorded in this sequence. I did not state in Exh.PA that Muhammad Younis caused many blows with his dang on me which hit me on the different parts of my body. Confronted with Exh.PA where it is so recorded. I stated in Exh.PA that Siddique was taken to RHC Basirpur where he was medically examined by the doctor and was admitted in the Hospital. Confronted with Exh.PA where medically examined is not mentioned.-----Siddique deceased was my husband and was father of Aslam PW. Waris PW is my nephew and also son-in-law. There was no Abadi surrounding the place of occurrence. No other person reached at the place of occurrence at the time of occurrence and after the occurrence except me and

my husband Muhammad Siddique.-----PWs
Rehmat Ali is son of my sister whereas Shoukat Ali is
son of my Khala.”

Muhammad Aslam (PW-2) deposed during cross-examination that:

“I got recorded my statement to the police in the
hospital at about 11:00 p.m. on the day of occurrence,
I had stated in my statement that Haji Muhammad
Siddique and my mother Roshani Bibi were present
in our agricultural land when suddenly accused
persons Chargah armed with Kassi and Younis
accused while armed with dang present in Court
came there. Confirmed with Exh.DC where it is not
so recorded in this sequence. I stated in Exh.DC that
Chargh accused since dead raised lalkara to
Muhammad Younis accused to kill Haji Muhammad
Siddique and Roshani Bibi. Confronted with Exh.DC
where it is not so recorded. I recorded in my
statement Exh.DC that accused raised lalkara to
Muhammad Younis accused to kill Haji Muhammad
Siddique and Roshani Bibi. Muhammad Younis
accused inflicted a dang blow which hit on left side of
head of Haji Muhammad Siddique, Younis accused
inflicted second dang blow which hit on the right arm
of Haji Muhammad Siddique (deceased) and Haji
Muhammad Siddique deceased fell on the ground.
Confronted with Exh.DC where it is not recorded in
this sequence.----- I stated in Exh.DC that
Chargh accused inflicted a kassi blow to Haji
Muhammad Siddique which hit on his palm of right
hand, my mother Roshani Bibi came forwarded to
rescue my father, Chargh accused inflicted kassi blow
which hit on the right arm of my mother Roshani
Bibi. Confronted with Exh/DC where it is not so
recorded. I stated in my statement Exh.DC that
Younis accused inflicted dang blow which hit on the
back of head of Roshani Bibi, Younis accused inflicted
dang blow which hit on the left knee of Roshani Bibi
she fell on the ground and Younis accused inflicted
third dang blow which hit on the left buttock of
Roshani Bibi. Confronted with Exh.DC where it is not
so recorded in this sequence.----- I did not
state in my statement that on 01.08.2014, at Noon
time, I and Waris s/o Sarwar PW on hearing the noise
alongwith other people reached there and saw that
Muhammad Younis armed with dang, accused

Chargh armed with Kassi were beating Roshani Bibi and Muhammad Siddique and both were fallen on the ground. Confronted with Exh.DC where it is so recorded. I did not state in my statement Exh.DC that on seeing us the accused fled away from the place of occurrence. Confronted with Exh.DC where it is so recorded.”

It is a settled principle of law that when a witness improves his version to strengthen the prosecution's case, his improved statement subsequently made cannot be relied upon, as the witness has improved his statement dishonestly; therefore, his credibility becomes doubtful on the well-known principle of criminal jurisprudence that improvement once found deliberate and dishonest casts serious doubt on the veracity of the witness. Reliance is placed on the case titled “**Akthar Ali and others Vs. The State (2008 SCMR 6)**”, in which the Hon’ble Supreme Court of Pakistan has observed at page 12 as under: -

“It is also a settled maxim when a witness improves his version to strengthen the prosecution case his improved statement subsequently made cannot be relied upon as the witness has improved his statement dishonestly, therefore, his credibility becomes doubtful on the well-known principle of criminal jurisprudence that improvements once found deliberate and dishonest cast serious doubt on the veracity of the such witness.”

This also casts doubt on the testimony of Roshnai Bibi (PW-1), the complainant, and Muhammad Aslam (PW-2). Muhammad Aslam (PW-2). Roshnai Bibi (PW-1), the complainant, an injured witness, deposed falsely to support the prosecution's version. By now it is well settled that injured witness is not necessarily a truthful witness and he cannot be believed merely because he is having stamp of injuries on his body; in this regard, guidance has been sought from the cases of “**MUHAMMAD HAYAT and another versus The STATE**” (1996 SCMR 1411), “**ISHTIAQ HUSSAIN and another versus The STATE and others**” (2021 SCMR 159), “**MUHAMMAD ABRAS versus The STATE**” (2025 SCMR 1145) and “**FATEH KHAN versus The STATE and others**”

(2025 SCMR 1408). The Hon'ble Supreme Court of Pakistan in the case titled "Amin Ali and another v. The State" (2011 SCMR 323) held that:

"-----Certainly, the presence of the injured witnesses cannot be doubted at place of incident, but the question is as to whether they are truthful witnesses or otherwise, because merely the injuries on the persons of P.Ws would not stamp them truthful witnesses."

The Hon'ble Supreme Court of Pakistan in the case reported as "Muhammad Pervez and others v. The State and others" (2007 SCMR 670) held that,

" It is also a settled law that injuries on a P.W. only indiction of his presence at the spot but is not informative prove of his credibility and truth."

All these circumstances, in my view, cast a serious doubt on the testimony of Roshnai Bibi (PW-1), the complainant, and Muhammad Aslam (PW-2). The appellant is entitled to the benefit of the doubt on that score.

10. In these circumstances, the testimony of the eye witnesses does not inspire confidence. It is also an admitted fact on record that there exists enmity between the parties. Independent corroboration of the prosecution's version is an essential requirement in cases of admitted enmity between the parties; therefore, it was necessary. Moreover, the occurrence had taken place on 01.08.2014 at about noon, and Roshani Bibi (PW-1), the complainant, reported the incident to Ghulam Sabir, ASI (PW-4), at the police station, who chalked out F.I.R. (Ex.PD) on 02.08.2014 at 12:15 a.m. This Court has also noted that postmortem examination was conducted by Doctor Adal Rasheed (PW-7) at 12:05 a.m. on 02.08.2014. The probable time between death and postmortem was 13 hours. There is no plausible explanation as to why the postmortem of the dead body was delayed for 13 hours. No doubt, delay in postmortem alone is not fatal to the prosecution case, but when this court considered it with the other evidence available on the record along with the postmortem report (Ex.PF), they do influence the mind of the Court and leave the impression that there had been some wrangling about the time of registration

of the criminal case. Doctor Adal Rasheed (PW-7) deposed during cross-examination that:

“The police papers were received by me on 02.08.2014 at about 11:30 a.m. and that the post mortem was conducted by me on the dead body of Muhammad Siddique on 02.08.2014 at 12:05 p.m.”

This casts serious doubt on the authenticity of the prosecution's story. Whereas, in the inquest report (Ex.PF/4), particulars of the FIR were not mentioned. All the above-mentioned facts cast doubt on the time at which Roshnai Bibi (PW-1), the complainant, reported the incident to the police. Considering all these facts, I have no hesitation in concluding that the prosecution has not been able to prove on record that the incident was reported at the time at which it was claimed to have been recorded, and that the witnesses were truthful. Looking at these facts, this court is of the opinion that the true genesis of the occurrence has been withheld by the prosecution. The prosecution has failed to bring home the charges framed against the appellant.

11. As far as the recovery of specific “sota” (P-1) which had allegedly been recovered on the disclosure of the appellant is concerned, accordingly the “sota” (P-1) was not blood stained, however, at the risk of repetition, I may mention here that the “sota” (P-1) was recovered on 09.09.2014 i.e. after thirty-nine days of the alleged occurrence from his cattle shed. In the memo of recovery of weapon of offence (Ex.PB), the address of the place from where the recovery was effected has not been mentioned; however, in the memo of recovery (Ex.PB), it was mentioned from his (Muhammad Younas) cattle shed. Muhammad Aslam (PW-2) and Muhammad Iqbal SI (PW-9), the investigating officer, deposed during their testimony that recovery was effected from his cattle shed. Whereas the site plan of the place of recovery of the Sota (Ex.PK) is shown by the accused, Charagh, and Muhammad Younas. According to the prosecution's version, soon after the occurrence, the accused fled. The question arose as to why, if the accused-appellant fled after the occurrence, he came back and put the “Sota” (P-1) in the cattle shed, as per the deposition of prosecution witnesses, remained

unexplained. Even otherwise, it does not appeal to reason that the accused might have kept “Sota” (P-1) with him intact in order to produce it before the Investigating Officer on his arrest. The appellant-accused cannot be expected to keep the “Sota” (P-1) in his house for a long period when he could have easily disposed of the same. Reliance is placed on the judgment of the Hon’ble Supreme Court of Pakistan in the case of “Bashir Ahmed alias Mannu v. The State” (NLR 1996 Criminal 234), wherein the learned Apex Court had disbelieved the prosecution evidence on this count.

12. Now coming to the motive part of the prosecution case, As far as motive is concerned, it is a double edged sword, which cut both sides/ways. The prosecution brought on the record the motive of the occurrence through Roshnai Bibi (PW-1), the complainant, and Muhammad Aslam (PW-2). Roshnai Bibi (PW-1), the complainant, took a specific motive in the complaint (Ex.PA), the relevant part of the complaint (Ex.PA) reads as under:-

”وجہ عناد یہ ہے کہ دیہہ میں میرے خاوند کے نام چار کنال
زرعی رقبہ ہے جس پر ملزمان زبردستی قبضہ کرنا چاہتے ہیں“

Muhammad Aslam (PW-2) has deposed about the motive part of the incident, but during the cross-examination, the defence brought improvement made by the witness in his statement on the record, which reads as under:

“I got recorded in my statement that motive for the
occurrence was that the accused person wanted to
snatch four kanal agriculture land and on the
resistance of our parents accused persons have
committed the murder of my father and injured my
mother Roshnai Bibi with intention to kill her in
furtherance of their common intention. Confronted
with Exh.DC where motive stated by the PW is not
mentioned.”

During the investigation, Roshnai Bibi (PW-1), the complainant, has not produced any documentary evidence to establish that the land belongs to the deceased, Muhammad Siddique. Muhammad Iqbal SI (PW-9), the investigating officer, deposed during cross-examination that:

“In cross version got registered by Muhammad Rafique regarding this occurrence I also challaned Muhammad Umar and Ramzan accused. Muhammad Siddique deceased was an aged person of 75 years. Muhammad Siddique deceased and Chragh P.O (since dead) were real brothers. It is incorrect that there was dispute of land and the fight took place between the parties and both the parties were injured in this occurrence.”

In the present case, the existence of enmity between the two parties, i.e., the complainant and the accused, has not been disputed before this Court. It is now trite law that enmity is a double-edged weapon. The existence of a motive on the part of the accused may be a reason for committing the crime, yet the court must be cognizant that this may, in a given case, lead to the false implication of the appellant. The prosecution's evidence reveals that the complainant (PW-1) concealed the real facts in the complaint (Ex.PA); thus, the prosecution has failed to lead evidence of a clear motive. In this background, the implication of Muhammad Younas, the appellant, in the case due to a dispute over land is quite probable, and prosecution witnesses may be inclined to implicate Muhammad Younas in a criminal case. There are always different motives operating in the mind of the person making a false accusation. Therefore, motive in this case is of no avail to the prosecution.

13. As it is difficult to rely upon the testimonies of PW-1 and PW-2 and for other reasons enumerated hereinbefore, I am persuaded to hold that the prosecution had not been able to prove its case against the appellant beyond any shadow of doubt, as there were many dents in the prosecution's story. As such, the conviction and sentence recorded by the learned trial court cannot be sustained. Reliance has been placed on the case reported as **“Muhammad Akram v. The State”** (2009 SCMR 230) wherein the Hon’ble Supreme Court of Pakistan held that:-

“The nutshell of the whole discussion is that the prosecution case is not free from doubt. It is an axiomatic principle of law that in case of doubt, the benefit thereof must accrue in favour of the accused as matter of right and

not of grace. It was observed by this Court in the case of Tariq Pervez v. The State 1995 SCMR 1345 that for giving the benefit of doubt, it was not necessary that there should be many circumstances creating doubts. If there is circumstance which created reasonable doubt in a prudent mind about the guilt of the accused, then the accused would be entitled to the benefit of doubt not as a matter of grace and concession but as a matter of right.”

14. I, therefore, **accept in toto Criminal Appeal No.25629 of 2021** filed by appellant, Muhammad Younis son of Charagh, as a result whereof conviction and sentence recorded by the learned trial court vide judgment dated 31.03.2021 is **set aside** and the appellant Muhammad Younis son of Charagh is ordered to be **acquitted** of the charge in case F.I.R. No.468 of 2014, dated 02.08.2014, offence under Sections 302/34 PPC, registered at Police Station Basirpur, District Okara. The appellant, Muhammad Younis, son of Charagh, is directed to be released forthwith, if not required in any other case.

15. So far as **Criminal Revision No. 29272 of 2021** filed by the complainant for enhancement of the sentence of the appellant/respondent No.2, Muhammad Younis, son of Charagh, awarded by the trial court is concerned, for the reasons afore-stated, the same is devoid of any legal force, which is accordingly **dismissed**.

(AALIA NEELUM)
CHIEF JUSTICE

These are the detailed reasons for the short order.

CHIEF JUSTICE

Approved for reporting

CHIEF JUSTICE